

THE REPUBLIC OF UGANDA

MEMORANDUM OF UNDERSTANDING

THIS AGREEMENT made on day of 2023

BETWEEN

ENGINEERS WITHOUT BORDERS (“EWB”) of University of Kansas chapter 2150 learned hall, 1530 W.15th Street, Lawrence, KS 66045 as Providers of Clean Water to “Bubago village”, which expression shall where the context so admit include their (successors, legal representatives and assignees) of the one part;

AND

Ayubu Muyanja, Ayubu Kiwate, Tigawalana Jowali, Bufumbo Daudi, Gasita Ikatya, Harid Kadambi, Bakali Kadambi and Isabirye Suudi of Masigid Kadiya, all residents of Bubago village, Buwaiswa Parish Buwaya sub county, Mayuge District (U), hereinafter referred to as the Donors of their individual private portions of their individual land to enable the drilling and construction of a water well(s) on their said lands, on the other part;

WHEREAS

- (a) The “Community of Bubago village has requested “EWB” to offer clean water and “EWB” has indicated willingness to render the said offer/provision of clean water and have presented themselves as possessed of professional skills, expertise and ability;
- (b) The ‘Bubago Community’ has satisfied itself with the details of the particulars presented by “EWB” as regards professional skills, ability and expertise and
- (c) The “Bubago Community” is desirous of receiving “EWB” on the services of “EWB” who are willing and able to undertake the provision of clean water, herein set forth upon terms and conditions hereinafter agreed;

NOW THEREFORE THESE PRESENTS WITNESSETH AS
HEREUNDER:-

1. The “Bubago Community” hereby offers portions of its land for purposes of the construction of the water well(s) by “EWB”.

2. That “EWB” shall use the land offered by the “Bubago Community” solely for the provision and distribution of clean water.
 - a. The community acknowledges that “EWB” will employ contracting companies to drill the well.
 - b. “EWB” will employ the contractors with the intent of fulfilling the project with the best interest of the community in mind.
 - c. The community acknowledges that the contractors employed are separate entities from “EWB” and do not speak on “EWB”’s behalf.
3. Contractors employed on behalf of “EWB” shall share plans with the community prior to drilling to prevent unseen disagreements from arising.
4. The “Bubago Community” acknowledges and agrees that drilling and construction may result in destruction of crops and near and around the drilling site.
5. The “Bubago Community” acknowledges that infrastructure and wildlife may be affected and/or damaged in unforeseen accidents during use.
6. The “Bubago Community” agrees to let “EWB” and their contractor drill a water well(s) on its property. The “Bubago Community” agrees that if the scoped borehole is unsuitable, “EWB-KU” will meet with the landowners to discuss location changes.
7. The “Bubago Community” agree to not;
 - Allow grazing animals, including but not limited to cattle, sheep, goats and chickens within the fenced area surrounding well(s) or within ten (10) meters if no fence is in place.
 - Allow public access to the well during drilling or during construction. The “Bubago Community” acknowledges that access to the drilling site may cause injuries. “EWB” is not responsible for any injuries of community from access during construction.
 - Lay animal excrements within fifty (50) meters of the well.
 - Install pit latrines, septic tanks or grave yards within fifty (50) meters of the well(s).

- Move or tamper with any permanent markers involving the system components.
8. (i) The “EWB” to use 2.5 metres in width of land over the pipeline and other areas as necessary to reach the pipeline route for construction or maintenance
- (ii) The “Bubago Community” ~~will~~ ~~may~~ remove or allow “EWB” and it’s contractors to remove crops, shrubs and trees as necessary to construct ~~or maintain~~ a clear path to the pipeline for the drilling rig to enter. The “Bubago Community” agrees to maintain the path to the borehole for future maintenance and construction. The “Bubago Community” that they bear the responsibility to restore any damages to the land like tire tracks from the drilling rig.
- (iii) After construction or maintenance shrubs, trees and crops will not be replaced.
- (iv) The “Bubago Community” may plant crops over the pipeline as long as no farming activities or plants that penetrate more than 0.5 meters. Such plants over the pipeline may be removed for maintenance.
- (vi) The “Bubago Community” undertakes not to construct any permanent structures over the designated pipeline route.
- (vii) The “Bubago Community” agrees to be cooperative in the testing of the output of the well and allow for testing of the output for several days. The “Bubago Community” agrees to not disturb or tamper with the well and distribution system. The “Bubago Community” agrees to allow continual access to the easement and area around the well for possible repairs in the future.
- (viii) The “EWB” will not construct a well within fifty (50) yards of any pit latrines, septic tanks or grave yards.
- (ix) The “Bubago Community” understands the borehole shall sit idle for several months before the EWB chapter’s in-person implementation in March of 2024. In this time design changes may be communicated to the “Bubago Community”. Any design changes resulting in different land requirements shall be communicated and agreed upon.

(x) “EWB” will not be held responsible for any damage done to infrastructure or crops due to flooding or other resulting problems caused by the installation of the water pump.

(xi) The water system shall be continually implemented in phases over the course of several years. The landowners will agree to the continued use of the land over this time.

(xi) The ‘Bubago’ community understands and accepts that non-compliance with these guidelines may result in setbacks or extensions of the proposed timelines.

7. Potential structures surrounding the well may include, but are not limited to:

- A hand pump. A generator and pump house.
- An elevated tank with a tap stand.
- Piping networks.
- Valve vaults.

8. In the event of any land disagreements not listed above, both “EWB” and “Bubago village” shall communicate and reach an agreement before taking action.

IN WITNESS WHEREOF, the “Bubago Community” and “EWB” have hereto set their respective hands on the day of the month and year first above written.

Signed by the said “Bubago community”

1. Ayubu Mayanja
2. Ayubu Kiwate
3. Tigawalana Jowali
4. Kyawenensa Moreen

5. Isabirye Suudi
6. Bufumbo Daudi
7. Gasita Ikatya
8. Charles Ikatya
9. Harid Kadam`bi
10. Jowali Kadambi
11. Bakali Kadambi

In witness of

Signed by:

For "EWB"

In witness of

All in the presence of:

ADVOCATE

CERTIFICATE OF TRANSLATION, Zinsanze IamIL OF m/s Zinsanze & Co Advocates, plot 25/27 Mukwaya Rd, P . O Box 160, Iganga, being fluent in both English and Lusoga languages do hereby certify that the above document was duly translated to "Bubago community" residents in their mother tongue and they fully understood the content therein.

Certified at Iganga this.....day of2023 by the said Zinsanze Ismail

Drawn by:

M/SZinsanze & Co Advocates

Plot 25/27 Mukwaya Rd

P. O Box 160, Iganga